

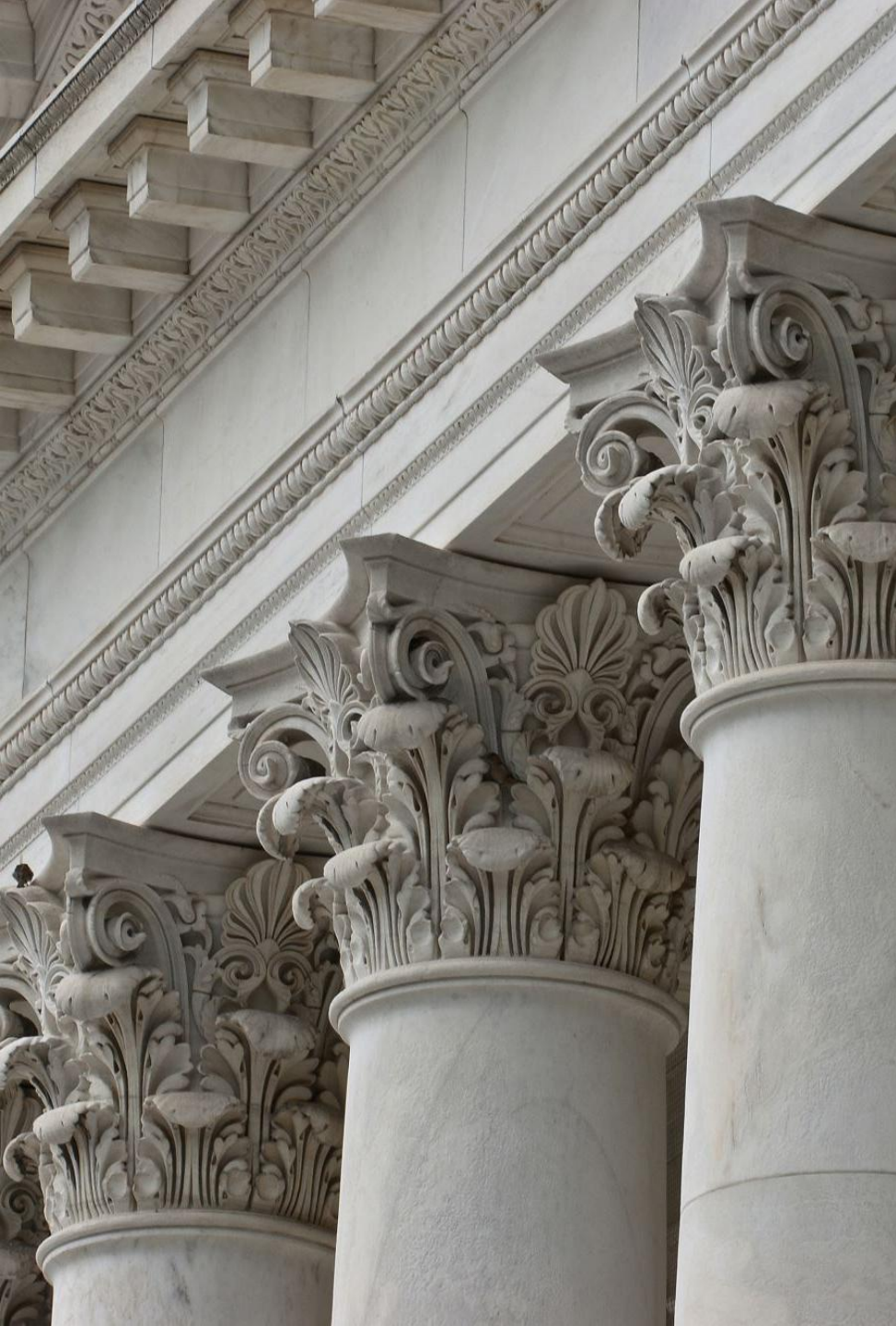


AROR UNIVERSITY
OF ART, ARCHITECTURE,
DESIGN & HERITAGE,
SUKKUR, SINDH

1973 CONSTITUTION & ITS SALIENT FEATURES

Course Instructor

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The first Constitution (1956) introduced a parliamentary system but was abrogated in 1958 after Ayub Khan's Martial Law.

The second Constitution (1962) established a presidential system, but it too was abolished in 1969 when General Yahya Khan took power.

After the 1970 general elections, political tension between East and West Pakistan led to the separation of East Pakistan and the creation of Bangladesh (1971).

Following the breakup, Zulfikar Ali Bhutto became President (and later Prime Minister) of the remaining Pakistan.

There was a strong demand for a new consensus-based democratic constitution to unite the nation.

A Constitutional Committee, chaired by Abdul Hafeez Pirzada, was formed in April 1972.

The committee represented all political parties and worked to reconcile differences between Islamic and democratic principles.

The National Assembly passed the draft of the constitution on 10 April 1973.

It was ratified on 12 April 1973, signed by the President on 12 April, and enforced on 14 August 1973, Pakistan's Independence Day.

The 1973 Constitution restored the parliamentary form of government and declared Islam as the state religion.

The 1973 Constitution restored democracy, strengthened parliament, and blended Islamic and democratic ideals.



CONSTITUTION OF 1973

Passed by NA on 10th April; Authentocated by President on 12th April; Enforced on 14th August 1973

Articles: 280; Parts: 12; Schedules: 07

Federal System

clear division of powers between the Federation and Provinces.

Prime Minister

The Prime Minister would be elected by majority of the National Assembly members.

Bi-Cameral System

A parliament would be considered to have two houses. The upper one would be called the Senate, and the lower one would be called the National Assembly.

Language & Capital

Urdu as National Language: English as Official Language: Islamabad as Capital

Human Rights

To protect Human Rights, safeguards were provided.

Free Judiciary

The Judiciary enjoys full supremacy over the other organs of the state

Minority Rights

Urdu would be the National Language.

Rigid Constitution

Any amendment in it was needed 2/3rd of majority of the parliament.



SALIENT FEATURES OF THE 1973 CONSTITUTION

It was enforced on **14 August 1973**.

It established a **Parliamentary form of government**.

Prime Minister as **Chief Executive**; **President** as **Ceremonial Head of State**.

Pakistan declared an **Islamic Republic**; **Islam** made the **State Religion**.

It guaranteed **Fundamental Rights** for all citizens.

It provided for a **bicameral legislature**, the **National Assembly** and **Senate**.

It introduced a **Federal system**, a clear division of powers between the **Federation and Provinces**.

Urdu declared the **national language** (English allowed for official use temporarily).

It ensured **independence of the judiciary**.

It laid down principles of **Islamic provisions**, including the **Council of Islamic Ideology (CII)**.

It provided for **adult franchise** and **direct elections**.

It contained **12 Parts** and **7 Schedules**.



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**Thank you for your time and
attention!**

**Hopefully, I will see you in the next
class. Until then, take care, & have a
great day!**

